

Section 1: The Civil Courts Act, 1887

Q1: What are the different classes of Civil Courts established under the Civil Courts Act, 1887, and what are their respective jurisdictions?

Answer Details: Under Section 3 of the Civil Courts Act, 1887, five distinct classes of Civil Courts are established in Bangladesh:

1. The Court of the District Judge
2. The Court of the Additional District Judge
3. The Court of the Joint District Judge
4. The Court of the Senior Civil Judge (*formerly "Senior Assistant Judge" — renamed by the Civil Courts (Amendment) Act, 2026, effective 2 November 2025*)
5. The Court of the Civil Judge (*formerly "Assistant Judge" — renamed under the same 2026 amendment*)

● **Pecuniary Jurisdiction (Section 19):** As amended by the Civil Courts (Amendment) Act, 2021, Section 19 now fixes specific monetary limits rather than leaving them to general government notification:

- Civil Judge (formerly Assistant Judge): suits up to **Tk 15 lakh**
- Senior Civil Judge (formerly Senior Assistant Judge): suits up to **Tk 25 lakh**
- Joint District Judge: **unlimited** pecuniary jurisdiction over original civil suits

● **Appellate Jurisdiction (Section 21):** An appeal from a decree or order of a Joint District Judge lies to the District Judge **only if the value of the original suit did not exceed Tk 5 crore**; if it exceeds Tk 5 crore, the appeal lies directly to the High Court Division. (This specific threshold was introduced by the Civil Courts (Amendment) Act, 2021, replacing the earlier vaguer "statutory limit" language.)

Reference: Civil Courts Act, 1887, ss. 3, 19, 21; Civil Courts (Amendment) Act, 2021; Civil Courts (Amendment) Act, 2026.

Q2: How is the place of sitting of Civil Courts determined, and can a judge hold court outside their designated station?

- **Answer Details:** According to **Section 14** of the Act, the Government fixes the place or places at which any Civil Court under this Act is to be held.
- **Exception:** If a judge feels it necessary to hold court at a place other than the designated station for the administration of justice (e.g., local inspection), it must generally be authorized by specific or general orders of the Government or the High Court Division.

Reference: Civil Courts Act, 1887, s. 14.

Section 2: The Code of Civil Procedure, 1908 (CPC)

Q3: Explain the doctrine of *Res Sub-Judice* under the CPC and state its essential conditions.

- **Answer Details: Section 10** of the Code of Civil Procedure, 1908, governs the stay of suits (*Res Sub-Judice*). It prohibits a court from proceeding with the trial of any suit in which the matter in issue is also directly and substantially in issue in a previously instituted suit between the same parties.
- **Essential Conditions:**
 1. There must be two suits (one previously instituted, one subsequently instituted).
 2. The matter in issue in both suits must be identical.
 3. The suits must be between the same parties or their litigating representatives.
 4. The court where the previous suit is pending must have jurisdiction to grant the relief claimed.
 5. Both parties must be litigating under the same title.

Reference: Code of Civil Procedure, 1908, s. 10.

Q4: What is the distinction between *Res Judicata* (Section 11) and Constructive *Res Judicata*?

- **Answer Details: Section 11** bars a court from trying any suit or issue where the matter has already been directly and substantially decided in a former suit between the same parties by a competent court.
- **Constructive Res Judicata:** Found in **Explanation IV of Section 11**, it states that any matter which *might and ought* to have been made a ground of defense or attack in such former suit shall be deemed to have been a matter directly and substantially in issue in such suit. If a party fails to raise a claim/defense when they had the chance, they are barred from raising it in subsequent litigation.

Reference: Code of Civil Procedure, 1908, s. 11 & Explanation IV.

Q5: What are the temporary injunction rules under Order XXXIX of the CPC?

- **Answer Details: Order XXXIX, Rules 1 and 2** outline the circumstances where a temporary injunction may be granted.
- **Grounds (Rule 1):** An injunction may be granted if it is proved by affidavit or otherwise that property in a suit is in danger of being wasted, damaged, or alienated by any party, or wrongfully sold in execution of a decree.
- **Three Golden Principles:** The court evaluates:
 1. *Prima facie* case (a serious question to be tried).
 2. Irreparable loss or injury (monetary compensation would not suffice).
 3. Balance of convenience (greater inconvenience would be caused to the applicant if denied).

Reference: Code of Civil Procedure, 1908, Order XXXIX, rr. 1–2.

Section 3: The Contract Act, 1872

Q6: Define 'Proposal' and 'Acceptance' and explain when communication becomes complete under the Contract Act.

- **Answer Details: Section 2(a)** defines a proposal (offer) as when one person signifies to another his willingness to do or to abstain from doing anything, with a view to obtaining the assent of that other. **Section 2(b)** states that when the proposal is signified, it is deemed accepted.
- **Completion of Communication (Section 4):**
 - The communication of a proposal is complete when it comes to the knowledge of the person to whom it is made.
 - The communication of an acceptance is complete: *as against the proposer*, when it is put in a course of transmission to him so as to be out of the power of the acceptor; *as against the acceptor*, when it comes to the knowledge of the proposer.

Reference: Contract Act, 1872, ss. 2(a), 2(b), 4

Q7: What are the essential elements of a valid contract under Section 10 of the Contract Act, 1872?

- **Answer Details: Section 10** establishes that all agreements are contracts if they are made by:
 1. The **free consent** of parties competent to contract.
 2. For a **lawful consideration**.
 3. With a **lawful object**.
 4. Are not hereby **expressly declared to be void**.
- **Competency (Section 11):** Parties must be of the age of majority according to the law to which they are subject, of sound mind, and not disqualified from contracting by any law.

Reference: Contract Act, 1872, ss. 10, 11.

Section 4: The Copyright Act, 2023

Q8: What is the statutory duration of copyright protection for literary, dramatic, and musical works under the Copyright Act, 2023?

- **Answer Details:** Under the current statutory framework of the Copyright Act, 2023, copyright subsists in any literary, dramatic, musical, or artistic work published within the lifetime of the author.
- **Term:** Protection extends for the lifetime of the author plus **60 years** from the beginning of the calendar year next following the year in which the author dies. Joint authorship is calculated from the death of the last surviving author.

Reference: Copyright Act, 2023, s. 22.

Q9: What constitutes 'Fair Use' or acts that do not infringe copyright under the Copyright Act, 2023?

- **Answer Details:** The Act explicitly provides statutory exemptions where utilization of a copyrighted work does not amount to infringement. These include:
 1. **Private or personal use**, including research or private study.
 2. **Criticism or review** of that work or any other work.
 3. **Reporting current events** and current affairs in print, broadcast, or digital media.

4. Reproduction for judicial proceedings or educational purposes within statutory limits.

Reference: Copyright Act, 2023, s. 72 (acts not constituting infringement); s. 2(42) (definitional fair-use standard).

Section 5: The Court Fees Act, 1870

Q10: Distinguish between 'Ad Valorem' court fees and 'Fixed' court fees under this Act.

- **Answer Details:**

- **Ad Valorem Fees:** Calculated as a percentage or variable scale based directly on the monetary valuation of the subject matter of the suit (governed primarily by **Section 7** and Schedule I). Examples include suits for money recovery or declaration of title with consequential relief.
- **Fixed Fees:** Set at a rigid, flat rate regardless of the value of the property or claim, governed by Schedule II. Examples include simple declaratory suits without consequential relief, or applications/petitions where no financial recovery is sought.

Section 6: The Code of Criminal Procedure, 1898 (CrPC)

Q11: Explain the difference between a Cognizable and a Non-Cognizable offence.

- **Answer Details:** Under **Section 4(1)(f)**, a "cognizable offence" is an offence for which a police officer may, in accordance with the second schedule or under any other law for the time being in force, arrest without a warrant.
- **Non-Cognizable (Section 4(1)(n)):** An offence for which a police officer may *not* arrest without a warrant. Investigation into non-cognizable cases requires an order from a competent Magistrate (**Section 155**).

Q12: What is the procedure for recording a First Information Report (FIR) under Section 154 of the CrPC?

- **Answer Details:** **Section 154** mandates that every information relating to the commission of a cognizable offence, if given orally to an officer in charge of a police station, must be reduced to writing by him or under his direction. ● **Key Protocols:**
 1. It must be read over to the informant.
 2. It must be signed by the person giving it.
 3. The substance thereof must be entered in a book kept by such officer (the General Diary/FIR register).

Section 7: The Evidence Act, 1872

Q13: What is the doctrine of *Res Gestae* under the Evidence Act, 1872?

- **Answer Details:** **Section 6** of the Evidence Act embodies the principle of *Res Gestae*. It states that facts which, though not in issue, are so connected with a fact in issue as to form part of the same transaction, are relevant, whether they occurred at the same time and place or at different times and places.
- **Example:** Spontaneous exclamations made by bystanders at the exact moment a crime is committed are admissible because they are linked to the same transaction.

Q14: Distinguish between Primary and Secondary Evidence under Sections 62 and 63.

- **Answer Details:**

- **Primary Evidence (Section 62):** Means the document itself produced for the inspection of the Court. It is considered the best evidence.
- **Secondary Evidence (Section 63):** Includes certified copies, copies made from the original by mechanical processes, counterparts of documents, and oral accounts of the contents of a document given by some person who has himself seen it. It is admissible only under the specific conditions listed in **Section 65**.

Section 8: The Bangladesh Labour Act, 2006

Q15: What are the different classifications of workers under the Bangladesh Labour Act, 2006?

- **Answer Details:** Under **Section 4** of the Act, workers are classified into seven distinct categories based on the nature and tenure of their work:
 1. Apprentice (শিক্ষানবিস)
 2. Casual (আকি ক)
 3. Badli (বদলি)
 4. Temporary (অস্থায়ী)
 5. Probationer (শিক্ষাধীন)
 6. Permanent (স্থায়ী)
 7. Seasonal (মৌসুমি)

Section 9: The Limitation Act, 1908

Q16: Explain the concept of "Condonation of Delay" under Section 5 of the Limitation Act, 1908.

- **Answer Details:** **Section 5** permits the court to admit an appeal or an application (except an application under Order XXI of the CPC for execution of decrees) after the prescribed period of limitation if the appellant or applicant satisfies the court that he had **sufficient cause** for not preferring the appeal or making the application within such period.
- **Note:** Section 5 applies to appeals, applications for review, revision, or leave to appeal, but does **not** apply to original suits.

Section 10: The Negotiable Instruments Act, 1881 (NI Act)

Q17: What are the mandatory ingredients to constitute an offence of dishonor of a cheque under Section 138 of the NI Act?

- **Answer Details:** To convict an individual under **Section 138**, the following statutory timeline and conditions must be strictly met:
 1. The cheque must be presented to the bank within **6 months** from the date on which it is drawn or within its validity.
 2. The cheque must be returned by the bank unpaid due to insufficiency of funds or exceeding arrangements.
 3. The payee must make a demand for payment by giving a notice **in writing within 30 days** of receiving information from the bank regarding the return.
 4. The drawer must fail to make payment within **30 days** of receiving the notice.

Section 11: The Public Demands Recovery Act, 1913 (PDR Act)

Q18: What is the procedure for filing a certificate for public demand under Section 4 and Section 6 of the PDR Act?

- **Answer Details:** When a Certificate-officer is satisfied that any public demand is due, he signs a certificate in the prescribed form stating the demand and files it in his office under **Section 4** (if the demand is due to the Collector) or **Section 6** (if due to any other person/institution authorized). A notice along with a copy of the certificate is then served on the certificate-debtor under **Section 7**.

Section 12: The Penal Code, 1860

Q19: Define 'Common Intention' under Section 34 of the Penal Code and differentiate it from 'Common Object' under Section 149.

- **Answer Details:**
 - **Section 34 (Common Intention):** When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone. It requires a prior meeting of minds and active participation.
 - **Section 149 (Common Object):** Applies to members of an unlawful assembly (5 or more persons). If an offence is committed to achieve the common object of that assembly, every member is liable, even if they did not personally commit the specific criminal act.

Section 13: The Registration Act, 1908

Q20: Which documents are compulsorily registrable under Section 17 of the Registration Act, 1908?

- **Answer Details:** **Section 17** mandates registration for several documents, including:
 1. Instruments of gift of immovable property.
 2. Non-testamentary instruments which purport or operate to create, declare, assign, limit, or extinguish any right, title, or interest in immovable property valued at 100 Taka or upwards.
 3. Leases of immovable property from year to year, or for any term exceeding one year.
 4. Instruments transferring or assigning any decree or order of a Court affecting immovable property of value 100 Taka and upwards.

Section 14: The Specific Relief Act, 1877

Q21: What is the remedy for a person dispossessed of immovable property without his consent under Section 9 of the Specific Relief Act?

- **Answer Details:** **Section 9** provides a summary remedy. If any person is dispossessed without his consent of immovable property otherwise than in due course of law, he (or any person claiming through him) may recover possession by filing a suit.
- **Conditions:** The suit must be brought within **6 months** from the date of dispossession. No question of title can be raised or determined in such a suit, and no appeal or review lies from any order or decree passed under this section.

Section 15: The Suits Valuation Act, 1887

Q22: What is the object of the Suits Valuation Act, 1887, and how does it relate to the Court Fees Act?

- **Answer Details:** The Act regulates the valuation of suits for determining both **pecuniary jurisdiction** and **court fees**. Under **Section 8**, in suits other than those referred to in the Court Fees Act Section 7, paragraphs v, vi, ix, and x (clause d), the value as determinable for the computation of court fees and the value for purposes of jurisdiction shall be the same.

Section 16: The Income Tax Act, 2023

Q23: How is the residential status of an individual determined for tax purposes under the Income Tax Act, 2023?

- **Answer Details:** Under the current statutory framework, an individual is considered a **resident** in Bangladesh for an income year if they stay in Bangladesh:
 1. For a period of, or periods amounting in the aggregate to, **182 days** or more in that income year; or
 2. For a period of, or periods amounting in the aggregate to, **90 days** or more in that income year, AND have been in Bangladesh for **365 days** or more during the 4 years preceding that income year.

Section 17: The Stamp Act, 1899

Q24: What are the consequences of an instrument not being duly stamped under Section 35 of the Stamp Act, 1899?

- **Answer Details:** Under **Section 35**, any instrument chargeable with duty shall not be admitted in evidence for any purpose by any person having by law or consent of parties authority to receive evidence, nor shall it be acted upon, registered, or authenticated, unless such instrument is **duly stamped**.
- **Cure:** It can be admitted on payment of the unpaid duty along with a statutory penalty.

Section 18: The Trademarks Act, 2009

Q25: What is the difference between trademark infringement and an action for passing off under the Trademarks Act, 2009?

- **Answer Details:**
 - **Infringement:** This is a statutory remedy available only to the owner of a **registered trademark** when another party uses an identical or deceptively similar mark without authorization.
 - **Passing Off:** This is a common law tort remedy preserved under **Section 24** of the Act. It applies to **unregistered trademarks**. The owner must prove goodwill, misrepresentation by the defendant, and damage/likelihood of damage to their reputation.

Section 19: The Transfer of Property Act, 1882 (TPA)

Q26: Define the principle of *Lis Pendens* under Section 52 of the TPA.

- **Answer Details:** **Section 52** provides that during the pendency in any Court of any suit or proceeding which is not collusive and in which any right to immovable property is directly and specifically in question, the property cannot be transferred or otherwise dealt with by

any party to the suit so as to affect the rights of any other party under any decree or order which may be made therein, except under the authority of the Court.

Section 20: The Land Reforms Act, 2023

Q27: What is the statutory ceiling on agricultural land ownership introduced/reaffirmed under the Land Reforms Act, 2023?

- **Answer Details:** The Land Reforms Act, 2023, reaffirms limits on the concentration of agricultural land to ensure equitable distribution. No individual or family is permitted to acquire or hold new agricultural land exceeding **60 bighas** in the aggregate. Exemptions apply to cooperative societies, tea estates, industrial plantations, and specialized commercial projects approved by the government.

Section 21: The Non-Agricultural Tenancy Act, 1949 (NAT Act)

Q28: Explain the right of pre-emption under Section 24 of the NAT Act.

- **Answer Details:** Under **Section 24**, if a portion or share of a non-agricultural land is transferred, the co-sharer tenants or immediate landlords have a right to apply to the court to have the said portion or share transferred to them upon depositing the consideration money along with a statutory compensation amount (typically **10%** of the purchase price) within the prescribed limitation window.

Section 22: The Partition Act, 1893

Q29: When can a court order a sale of property instead of physical division under Section 2 of the Partition Act, 1893?

- **Answer Details:** Under **Section 2**, whenever in a suit for partition it appears to the court that, by reason of the nature of the property or the number of shareholders, a division of the property cannot reasonably or conveniently be made, and that a **sale of the property and distribution of the proceeds** would be more beneficial for all the shareholders, the court may, on the request of any of such shareholders interested individually or collectively to the extent of one-half or more, direct a sale.

Section 23: The State Acquisition and Tenancy Act, 1950 (SAT Act)

Q30: Explain the right of pre-emption under Section 96 of the SAT Act, 1950.

- **Answer Details:** **Section 96** allows a co-sharer tenant of a holding to apply to the Civil Court to purchase a portion of land transferred to a stranger.
- **Key Rules:** The application must be filed within a strict limitation window from the date of knowledge or registration of the deed, accompanied by the consideration money plus **25%** compensation.

Section 24: The Muslim Family Laws Ordinance, 1961

Q31: What is the statutory requirement for entering into a polygamous marriage under Section 6 of the Muslim Family Laws Ordinance, 1961?

- **Answer Details:** **Section 6** mandates that no man, during the subsistence of an existing marriage, shall contract another marriage except with the **prior permission in writing of the Arbitration Council**.
- **Consequence:** Contracting a polygamous marriage without this permission makes the husband liable to immediate payment of the entire dower to the existing wife, potential criminal penalties (imprisonment and/or fine), and requires institutional intervention.

Section 25: The Dissolution of Muslim Marriages Act, 1939

Q32: On what grounds can a Muslim woman seek a decree for the dissolution of her marriage under Section 2 of the Act?

- **Answer Details:** A woman married under Muslim law is entitled to obtain a decree for the dissolution of her marriage under **Section 2** on grounds including:
 1. The whereabouts of the husband have been unknown for a period of **4 years**.
 2. The husband has neglected or failed to provide for her maintenance for a period of **2 years**.
 3. The husband has been sentenced to imprisonment for a period of **7 years** or upwards.
 4. The husband has failed to perform his marital obligations for **3 years**.
 5. Cruelty by the husband.

Section 26: The Hindu Law of Inheritance (Amendment) Act, 1929

Q33: Which female heirs were introduced into the line of succession under this amendment act?

- **Answer Details:** This Act altered the traditional order of succession under Mitakshara law by introducing specific female relatives into the line of inheritance immediately after the paternal grandfather. These include the **son's daughter, daughter's daughter, and sister**.

Section 27: The Hindu Married Women's Right to Separate Residence and Maintenance Act, 1946

Q34: What grounds allow a Hindu married woman to claim separate residence and maintenance under Section 2?

- **Answer Details:** Under **Section 2**, a Hindu married woman is entitled to separate residence and maintenance from her husband if:
 1. He is suffering from a loathsome disease not contracted from her.
 2. He treats her with such cruelty as renders it unsafe or undesirable for her to live with him.
 3. He is guilty of desertion.
 4. He marries again.
 5. He ceases to be a Hindu by conversion.

Section 28: The Hindu Marriage Registration Act, 2012

Q35: Is Hindu marriage registration compulsory or optional under the Act of 2012?

- **Answer Details:** Under the Hindu Marriage Registration Act, 2012, the registration of a Hindu marriage is **optional and voluntary**. Non-registration does not invalidate a marriage contract or ritual performed under Hindu personal law, but registration serves as definitive documentary proof of the marriage before state authorities. Here is **Part 2** of your comprehensive legal Q&A collection. It continues with the same structured, section-by-section breakdown across your 28 listed statutes, picking up from Question 36 to Question 75.

To turn this into a PDF, you can append this text directly beneath Part 1 in your word processor before exporting.

Part 2: Comprehensive Legal Q&A (Questions 36 to 75)

Section 1: The Civil Courts Act, 1887

Q36: What is the procedure for administrative subordination of Civil Courts under Section 11?

Answer Details Section 10 of the Civil Courts Act, 1887, dictates that if the office of the District Judge becomes vacant, or if the judge is prevented by absence or illness from performing duties, the **Additional District Judge** takes charge of the current duties of the office.

- **Order of Succession:** If there is no Additional District Judge available, the senior-most officer among the **Joint District Judges** or **Senior Civil Judges** (formerly "Senior Assistant Judges") takes charge instead.

- **Scope of Authority:** The officer in charge can perform routine administrative tasks until a formal appointment or assignment is designated by the Government or the High Court Division.

Reference: Civil Courts Act, 1887, s. 10 (titles updated by the Civil Courts (Amendment) Act, 2026, effective 2 November 2025).

- **Q37: How are temporary vacancies in the office of a District Judge managed under Section 10?**
- **Answer Details:** **Section 10** dictates that if the office of the District Judge becomes vacant or if the judge is prevented by absence or illness from performing duties, the Additional District Judge or, if there is none, the senior-most officer among the Joint District Judges or Senior Assistant Judges takes charge of the current duties of the office. They can perform routine administrative tasks until a formal appointment or assignment is designated by the Government or High Court Division.

Section 2: The Code of Civil Procedure, 1908 (CPC)

Q38: What are the primary rules governing the "Rejection of a Complaint" under Order VII, Rule 11?

- **Answer Details:** **Order VII, Rule 11** mandates that a complaint *shall* be rejected by the court under four specific, distinct statutory scenarios:
 1. Where it does not disclose a clear **cause of action**.
 2. Where the relief claimed is undervalued, and the plaintiff fails to correct the valuation within the time fixed by the court.
 3. Where the relief is properly valued, but the complaint is written upon paper insufficiently stamped, and the plaintiff fails to supply the requisite stamp paper within the court's timeline.
 4. Where the suit appears from the statement in the complaint to be **barred by any law**.

Q39: What is the distinction between a "Review" (Section 114, Order XLVII) and a "Revision" (Section 115)?

- **Answer Details:**

- **Review:** Filed in the *same court* that passed the original decree or order. It is permissible on grounds of discovery of new and important matter/evidence, a mistake or error apparent on the face of the record, or any other sufficient reason.
- **Revision:** Filed strictly before a *superior court* (such as the High Court Division or District Judge as per jurisdiction) against a non-appealable order. It addresses errors of jurisdiction—where the subordinate court has exercised a jurisdiction not vested in it, failed to exercise a jurisdiction vested, or acted with material irregularity.

Q40: Under what conditions can a Court order a "Judgment Debtors" arrest and detention in civil prison?

- **Answer Details:** Under **Section 51 and Order XXI, Rule 37**, execution of a decree by detention in prison requires the court to give the judgment-debtor an opportunity to show cause why he should not be committed to prison. The court must be satisfied that the debtor, with the object of obstructing execution, is about to abscond, has dishonestly transferred property, or has the means to pay but refuses/neglects to do so.

Section 3: The Contract Act, 1872

Q41: What is the effect of an agreement where both parties are under a mistake as to a matter of fact under Section 20?

- **Answer Details:** **Section 20** establishes that where both the parties to an agreement are under a mistake as to a **matter of fact essential to the agreement**, the agreement is completely **void**.
- **Limitation:** **Section 21** clarifies that a contract is not voidable merely because it was caused by a mistake as to any law in force in Bangladesh; a mistake as to a foreign law has the same effect as a mistake of fact.

Q42: Distinguish between "Liquidated Damages" and a "Penalty" under Section 74 of the Contract Act.

- **Answer Details:** **Section 74** eliminates the traditional English common law distinction between liquidated damages and penalties. It states that if a sum is named in the contract as the amount to be paid in case of breach, or if the contract contains any other stipulation by way of penalty, the party complaining of the breach is entitled to receive **reasonable compensation** not exceeding the amount so named, whether or not actual damage or loss is proved to have been caused.

Section 4: The Copyright Act, 2023

Q43: What constitutes a statutory assignment of copyright, and what are its formatting mandates?

- **Answer Details:** Under the Copyright Act, 2023, the owner of a copyright can assign the right to any person.
- **Mandates:** The assignment must be executed **in writing and signed by the assignor** or their duly authorized agent. It must explicitly specify the exact rights assigned, the duration of the assignment, the territorial extent, and the amount of royalty or consideration payable. If the duration is not specifically mentioned, it defaults to a statutory limit of 5 years.

Section 5: The Court Fees Act, 1870

Q44: What is the procedure if a court finds that the net profits or market value of a suit property has been wrongly estimated under Section 9?

- **Answer Details:** Under **Section 9**, if the Court has reason to believe that the market value or net profits of any property have been miscalculated, the Court may issue a commission to any proper person, directing him to make a local investigation and report back. Under **Section 10**, if it is found undervalued, the Court will require the plaintiff to pay the additional fees within a specified timeframe; if unpaid, the suit will be dismissed.

Section 6: The Code of Criminal Procedure, 1898 (CrPC)

Q45: Explain the statutory power of a Magistrate to issue an order in urgent cases of nuisance or apprehended danger under Section 144.

- **Answer Details: Section 144** empowers an Executive Magistrate, specially empowered by the Government, to issue an absolute or conditional written order directing any person to abstain from a certain act if the Magistrate considers that such direction is likely to prevent obstruction, annoyance, injury, or danger to human life, health, or safety, or a riot/affray.
- **Duration:** Such temporary orders cannot remain in force for more than **2 months** unless extended by the government via official notification.

Q46: What is the procedure for recording a confession by a Magistrate under Section 164?

- **Answer Details: Section 164** allows any Metropolitan Magistrate or Magistrate of the first class to record statements or confessions made during an investigation.
- **Mandatory Safeguards:**
 1. The Magistrate must explain to the accused person that he is **not bound to make a confession** and that if he does so, it may be used as evidence against him.
 2. The Magistrate must not record it unless he believes it was made **voluntarily**.
 3. A signed statutory memorandum must be appended at the foot of the record confirming these warnings.

Q47: What is the difference between an "Acquittal" and a "Discharge" under the CrPC?

- **Answer Details:**
 - **Discharge (Sections 241A, 265C):** Occurs at the initial stage of the criminal proceedings *before charges are formally framed*. It happens when the Magistrate or Sessions Judge considers the charge groundless after perusing the police report and case documents. It does not bar a fresh trial if new facts emerge.
 - **Acquittal (Sections 245, 265H):** Occurs at the *conclusion of a full trial* when the court finds the accused not guilty after recording evidence from both sides. It operates as an absolute bar to a second trial for the same offence under **Section 403 (Autrefois Acquit)**.

Section 7: The Evidence Act, 1872

Q48: What are the statutory rules governing a "Dying Declaration" under Section 32(1)?

- **Answer Details:** Under **Section 32(1)**, statements, written or verbal, of relevant facts made by a person who is dead are admissible when the statement is made by a person as to the **cause of his death**, or as to any of the circumstances of the transaction which

resulted in his death, in cases in which the cause of that person's death comes into question.

- **Validity Criterion:** It is admissible even if the person was not under expectation of death at the time the statement was made.

Q49: Explain the principle of "Estoppel" under Section 115 of the Evidence Act.

- **Answer Details:** **Section 115** defines Estoppel: When one person has, by his declaration, act or omission, intentionally caused or permitted another person to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed, in any suit or proceeding between himself and such person or his representative, to deny the truth of that thing. It acts as a rule of evidence that prevents a party from blowing hot and cold.

Section 8: The Bangladesh Labour Act, 2006

Q50: What is the statutory layout for "Maternity Benefit" calculations and leave periods under Section 46?

- **Answer Details:** Under **Section 46**, every woman worker is entitled to maternity leave for a total period of **16 weeks** (8 weeks preceding the expected day of delivery and 8 weeks immediately following delivery).
- **Eligibility:** She must have worked under the employer for a total period of not less than **6 months** immediately preceding the date of her delivery. Payment is calculated based on her average daily or weekly wage across the immediate past 3 months.

Section 9: The Limitation Act, 1908

Q51: How does "Legal Disability" affect the calculation of limitation periods under Section 6?

- **Answer Details:** Under **Section 6**, if a person entitled to institute a suit or make an application for the execution of a decree is, at the time from which the period of limitation is to be reckoned, a **minor, insane, or an idiot**, he may institute the suit or make the application within the same period after the disability has ceased, as would otherwise have been allowed from the time prescribed.

Section 10: The Negotiable Instruments Act, 1881 (NI Act)

Q52: What are the statutory presumptions regarding negotiable instruments under Section 118?

- **Answer Details:** **Section 118** mandates that until the contrary is proved, the following presumptions *shall* be made:
 1. **Of Consideration:** That every negotiable instrument was made or drawn for consideration.
 2. **As to Date:** That it was drawn on the date it bears.
 3. **As to Time of Acceptance:** That it was accepted within a reasonable time after its date and before its maturity.
 4. **As to Order of Indorsements:** That the indorsements appearing upon it were made in the order in which they appear.

Section 11: The Public Demands Recovery Act, 1913 (PDR Act)

Q53: How can a certificate-debtor challenge a filed certificate under Section 9?

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 - **Culpable Homicide (Section 299):** Whoever causes death by doing an act with the intention of causing death, or with the intention of causing such bodily injury as is likely to cause death, or with the knowledge that he is likely by such act to cause death.
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affecting such property, except as evidence of part-performance of a contract in a suit for specific performance.

Q74: How does the Penal Code's criminal breach of trust (Section 405) intersect with civil liability under the Contract Act?

- **Answer Details:** A single act can generate both civil and criminal actions. If an agent misappropriates property entrusted to him, he breaches a civil contract, making him liable for damages/accounting under the **Contract Act, 1872**. Simultaneously, because dishonest misappropriation contains *mens rea*, it satisfies the definition of Criminal Breach of Trust under **Section 405 of the Penal Code**, rendering him liable to imprisonment under **Section 406**.

Q75: How does Section 138 of the NI Act interact with civil suits for money recovery under the CPC?

- **Answer Details:** A criminal prosecution under **Section 138 of the NI Act** for a dishonored cheque is an independent punitive action aimed at penalizing the offender. It does not bar the payee from concurrently filing a summary civil suit under **Order XXXVII of the CPC** for the recovery of the debt amount using the same dishonored cheque as primary documentary evidence.

Moving Forward to the Remaining Questions

To generate the next set of questions (Questions 76–115), please reply with "**Proceed with Part 3**".

Here is **Part 2** of your comprehensive legal Q&A collection. It continues with the same structured, section-by-section breakdown across your 28 listed statutes, picking up from Question 36 to Question 75.

To turn this into a PDF, you can append this text directly beneath Part 1 in your word processor before exporting.

Section 1: The Civil Courts Act, 1887

Q36: What is the procedure for administrative subordination of Civil Courts under Section 11?

- **Answer Details:** Under **Section 11**, the administrative control and subordination of civil courts are clearly mapped. All Assistant Judges, Senior Assistant Judges, and Joint District Judges within a district are structurally subordinate to the Court of the District Judge. The District Judge possesses the administrative power to distribute civil business among these courts, subject to any overarching circulars or rules issued by the High Court Division.

Q37: How are temporary vacancies in the office of a District Judge managed under Section 10?

- **Answer Details:** **Section 10** dictates that if the office of the District Judge becomes vacant or if the judge is prevented by absence or illness from performing duties, the Additional District Judge or, if there is none, the senior-most officer among the Joint District Judges or Senior Assistant Judges takes charge of the current duties of the office. They can perform routine administrative tasks until a formal appointment or

assignment is designated by the Government or High Court Division. **Section 2: The Code of Civil Procedure, 1908 (CPC)**

Q38: What are the primary rules governing the "Rejection of a Complaint" under Order VII, Rule 11?

- **Answer Details: Order VII, Rule 11** mandates that a complaint *shall* be rejected by the court under four specific, distinct statutory scenarios:
 1. Where it does not disclose a clear **cause of action**.
 2. Where the relief claimed is undervalued, and the plaintiff fails to correct the valuation within the time fixed by the court.
 3. Where the relief is properly valued, but the complaint is written upon paper insufficiently stamped, and the plaintiff fails to supply the requisite stamp paper within the court's timeline.
 4. Where the suit appears from the statement in the complaint to be **barred by any law**.

Q39: What is the distinction between a "Review" (Section 114, Order XLVII) and a "Revision" (Section 115)?

- **Answer Details:**
 - **Review:** Filed in the *same court* that passed the original decree or order. It is permissible on grounds of discovery of new and important matter/evidence, a mistake or error apparent on the face of the record, or any other sufficient reason.
 - **Revision:** Filed strictly before a *superior court* (such as the High Court Division or District Judge as per jurisdiction) against a non-appealable order. It addresses errors of jurisdiction—where the subordinate court has exercised a jurisdiction not vested in it, failed to exercise a jurisdiction vested, or acted with material irregularity.

Q40: Under what conditions can a Court order a "Judgment Debtors" arrest and detention in civil prison?

- **Answer Details: Under Section 51 and Order XXI, Rule 37**, execution of a decree by detention in prison requires the court to give the judgment-debtor an opportunity to show cause why he should not be committed to prison. The court must be satisfied that the debtor, with the object of obstructing execution, is about to abscond, has dishonestly transferred property, or has the means to pay but refuses/neglects to do so.

Section 3: The Contract Act, 1872

Q41: What is the effect of an agreement where both parties are under a mistake as to a matter of fact under Section 20?

- **Answer Details: Section 20** establishes that where both the parties to an agreement are under a mistake as to a **matter of fact essential to the agreement**, the agreement is completely **void**.
- **Limitation: Section 21** clarifies that a contract is not voidable merely because it was caused by a mistake as to any law in force in Bangladesh; a mistake as to a foreign law has the same effect as a mistake of fact.

Q42: Distinguish between "Liquidated Damages" and a "Penalty" under Section 74 of the Contract Act.

- **Answer Details:** **Section 74** eliminates the traditional English common law distinction between liquidated damages and penalties. It states that if a sum is named in the contract as the amount to be paid in case of breach, or if the contract contains any other stipulation by way of penalty, the party complaining of the breach is entitled to receive **reasonable compensation** not exceeding the amount so named, whether or not actual damage or loss is proved to have been caused.

Section 4: The Copyright Act, 2023

Q43: What constitutes a statutory assignment of copyright, and what are its formatting mandates?

- **Answer Details:** Under the Copyright Act, 2023, the owner of a copyright can assign the right to any person.
- **Mandates:** The assignment must be executed **in writing and signed by the assignor** or their duly authorized agent. It must explicitly specify the exact rights assigned, the duration of the assignment, the territorial extent, and the amount of royalty or consideration payable. If the duration is not specifically mentioned, it defaults to a statutory limit of 5 years.

Section 5: The Court Fees Act, 1870

Q44: What is the procedure if a court finds that the net profits or market value of a suit property has been wrongly estimated under Section 9?

- **Answer Details:** Under **Section 9**, if the Court has reason to believe that the market value or net profits of any property have been miscalculated, the Court may issue a commission to any proper person, directing him to make a local investigation and report back. Under **Section 10**, if it is found undervalued, the Court will require the plaintiff to pay the additional fees within a specified timeframe; if unpaid, the suit will be dismissed.

Section 6: The Code of Criminal Procedure, 1898 (CrPC)

Q45: Explain the statutory power of a Magistrate to issue an order in urgent cases of nuisance or apprehended danger under Section 144.

- **Answer Details:** **Section 144** empowers an Executive Magistrate, specially empowered by the Government, to issue an absolute or conditional written order directing any person to abstain from a certain act if the Magistrate considers that such direction is likely to prevent obstruction, annoyance, injury, or danger to human life, health, or safety, or a riot/affray.
- **Duration:** Such temporary orders cannot remain in force for more than **2 months** unless extended by the government via official notification.

Q46: What is the procedure for recording a confession by a Magistrate under Section 164?

- **Answer Details:** **Section 164** allows any Metropolitan Magistrate or Magistrate of the first class to record statements or confessions made during an investigation.
- **Mandatory Safeguards:**
 1. The Magistrate must explain to the accused person that he is **not bound to make a confession** and that if he does so, it may be used as evidence against him.
 2. The Magistrate must not record it unless he believes it was made **voluntarily**.

3. A signed statutory memorandum must be appended at the foot of the record confirming these warnings.

Q47: What is the difference between an "Acquittal" and a "Discharge" under the CrPC? •

Answer Details:

- **Discharge (Sections 241A, 265C):** Occurs at the initial stage of the criminal proceedings *before charges are formally framed*. It happens when the Magistrate or Sessions Judge considers the charge groundless after perusing the police report and case documents. It does not bar a fresh trial if new facts emerge.
- **Acquittal (Sections 245, 265H):** Occurs at the *conclusion of a full trial* when the court finds the accused not guilty after recording evidence from both sides. It operates as a absolute bar to a second trial for the same offence under **Section 403** (*Autrefois Acquit*).

Section 7: The Evidence Act, 1872

Q48: What are the statutory rules governing a "Dying Declaration" under Section 32(1)?

- **Answer Details:** Under **Section 32(1)**, statements, written or verbal, of relevant facts made by a person who is dead are admissible when the statement is made by a person as to the **cause of his death**, or as to any of the circumstances of the transaction which resulted in his death, in cases in which the cause of that person's death comes into question.
- **Validity Criterion:** It is admissible even if the person was not under expectation of death at the time the statement was made.

Q49: Explain the principle of "Estoppel" under Section 115 of the Evidence Act.

- **Answer Details:** **Section 115** defines Estoppel: When one person has, by his declaration, act or omission, intentionally caused or permitted another person to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed, in any suit or proceeding between himself and such person or his representative, to deny the truth of that thing. It acts as a rule of evidence that prevents a party from blowing hot and cold.

Section 8: The Bangladesh Labour Act, 2006

Q50: What is the statutory layout for "Maternity Benefit" calculations and leave periods under Section 46?

- **Answer Details:** Under **Section 46**, every woman worker is entitled to maternity leave for a total period of **16 weeks** (8 weeks preceding the expected day of delivery and 8 weeks immediately following delivery).
- **Eligibility:** She must have worked under the employer for a total period of not less than **6 months** immediately preceding the date of her delivery. Payment is calculated based on her average daily or weekly wage across the immediate past 3 months.

Section 9: The Limitation Act, 1908

Q51: How does "Legal Disability" affect the calculation of limitation periods under Section 6?

- **Answer Details:** Under **Section 6**, if a person entitled to institute a suit or make an application for the execution of a decree is, at the time from which the period of limitation is to be reckoned, a **minor, insane, or an idiot**, he may institute the suit or make the

application within the same period after the disability has ceased, as would otherwise have been allowed from the time prescribed.

Section 10: The Negotiable Instruments Act, 1881 (NI Act)

Q52: What are the statutory presumptions regarding negotiable instruments under Section 118?

- **Answer Details:** **Section 118** mandates that until the contrary is proved, the following presumptions *shall* be made:
 1. **Of Consideration:** That every negotiable instrument was made or drawn for consideration.
 2. **As to Date:** That it was drawn on the date it bears.
 3. **As to Time of Acceptance:** That it was accepted within a reasonable time after its date and before its maturity.
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Q73: What is the interplay between Section 17 of the Registration Act and Section 49 of the same Act regarding unregistered sales?

- **Answer Details:** While **Section 17** declares that a conveyance deed over 100 Taka must be compulsorily registered, **Section 49** acts as the enforcement mechanism. It dictates that an unregistered document required to be registered shall not affect any immovable property comprised therein, nor be received as evidence of any transaction affecting such property, except as evidence of part-performance of a contract in a suit for specific performance.

Q74: How does the Penal Code's criminal breach of trust (Section 405) intersect with civil liability under the Contract Act?

- **Answer Details:** A single act can generate both civil and criminal actions. If an agent misappropriates property entrusted to him, he breaches a civil contract, making him liable for damages/accounting under the **Contract Act, 1872**. Simultaneously, because dishonest misappropriation contains *mens rea*, it satisfies the definition of Criminal Breach of Trust under **Section 405 of the Penal Code**, rendering him liable to imprisonment under **Section 406**.

Q75: How does Section 138 of the NI Act interact with civil suits for money recovery under the CPC?

- **Answer Details:** A criminal prosecution under **Section 138 of the NI Act** for a dishonored cheque is an independent punitive action aimed at penalizing the offender. It does not bar the payee from concurrently filing a summary civil suit under **Order XXXVII of the CPC** for the recovery of the debt amount using the same dishonored cheque as primary documentary evidence.

Section 1: The Civil Courts Act, 1887

Q71: Can a District Judge invest an Assistant Judge with small cause court powers under this Act?

- **Answer Details:** Under **Section 25** of the Civil Courts Act, 1887, the Government, in consultation with the High Court Division, may invest any Civil Court Judge (including Assistant Judges or Senior Assistant Judges) with the jurisdiction of a Small Cause Court for the trial of suits cognizable by such courts up to a specified pecuniary limit. This allows for a more rapid, summary trial of low-value commercial or debt matters.

Q72: What are the statutory rules regarding the sealing of Civil Court processes under Section 15?

- **Answer Details: Section 15** dictates that every Civil Court must use a seal of a form and dimensions prescribed by the Government. Every summons, warrant, order, mandate, or process issued by a Civil Court must be signed by the presiding Judge (or an authorized officer) and must explicitly bear the official seal of that specific court to carry legal force.

Section 2: The Code of Civil Procedure, 1908 (CPC)

Q73: What is a "Mesne Profit" under Section 2(12) of the CPC, and how is it calculated?

- **Answer Details: Section 2(12)** defines "mesne profits" as those profits which the person in wrongful possession of such property actually received or might with ordinary diligence have received therefrom, together with interest on such profits.
- **Exclusion:** It explicitly excludes profits due to improvements made by the person in wrongful possession. It is claimed when a plaintiff sues for the recovery of immovable property from an unauthorized occupant.

Q74: Explain the summary procedure under Order XXXVII of the CPC and the conditions for a defendant to appear.

- **Answer Details: Order XXXVII** provides a fast-track summary procedure for suits upon bills of exchange, hundis, or promissory notes (and extended to specific debt-recovery contracts).
- **Leave to Defend:** Unlike ordinary suits, the defendant cannot file a written statement as a matter of right. They must enter an appearance within **10 days** of service of the summons and apply for "leave to defend." The court will grant leave only if the defendant's affidavit discloses a bona fide or triable defense.

Q75: What is the purpose of a "Garnishee Order" under Order XXI of the CPC?

- **Answer Details:** A Garnishee Order is an execution mechanism under **Order XXI, Rules 46A to 46I**. It allows a decree-holder to attach and recover monetary sums owed to the judgment-debtor by a third party (the "Garnishee"). The court orders the Garnishee directly to pay the debt into court instead of paying it to the judgment-debtor.

Section 3: The Contract Act, 1872

Q76: Distinguish between a Contract of Indemnity (Section 124) and a Contract of Guarantee (Section 126).

- **Answer Details:**
 - **Indemnity (Section 124):** A contract by which one party promises to save the other from loss caused to him by the conduct of the promisor himself, or by the conduct of any other person. There are only two parties (indemnifier and indemnified). Liability is primary.
 - **Guarantee (Section 126):** A contract to perform the promise, or discharge the liability, of a third person in case of his default. There are three parties (principal debtor, creditor, and surety). Liability of the surety is secondary and collateral to that of the principal debtor.

Q77: Explain the doctrine of frustration of contract under Section 56 of the Contract Act.

- **Answer Details: Section 56** establishes that an agreement to do an act impossible in itself is void. It further states that a contract to do an act which, after the contract is made, becomes impossible, or, by reason of some event which the promisor could not prevent, unlawful, becomes **void when the act becomes impossible or unlawful**. This

covers subsequent, unforeseen interventions that destroy the core commercial foundation of the agreement.

Section 4: The Copyright Act, 2023

Q78: What civil remedies are available to a copyright owner for infringement under the Copyright Act, 2023?

- **Answer Details:** The owner of a copyright can initiate a civil lawsuit in the Court of the District Judge. The available statutory remedies include:
 1. **Injunctions** (to restrain the continuation of the infringing activity).
 2. **Damages** or an account of profits made by the infringer.
 3. **Delivery up** of all infringing copies and plates used for manufacturing the unauthorized copies.

Section 5: The Court Fees Act, 1870

Q79: What is the procedure for a refund of court fees on a plaint rejected for undervaluation under Section 13?

- **Answer Details:** Under **Section 13**, if an appellate court remands a case for retrial, or if a plaint was rejected by a subordinate court and subsequently the appellate court reverses that decision, the appellant is entitled to receive a certificate from the court authorizing a **refund of the court fee** paid on the memorandum of appeal or plaint, preventing double taxation for administrative corrections.

Section 6: The Code of Criminal Procedure, 1898 (CrPC)

Q80: What are the statutory powers of a Court to issue a Proclamation and Attachment for an absconding person under Sections 87 and 88?

- **Answer Details:**
 - **Section 87 (Proclamation):** If a Court has reason to believe that any person against whom a warrant has been issued has absconded, it may publish a written proclamation requiring him to appear at a specified place and time not less than **30 days** from the date of publishing.
 - **Section 88 (Attachment):** Simultaneously or after the proclamation, the Court may order the attachment of any property, movable or immovable, belonging to the proclaimed person to compel compliance.

Q81: Explain the statutory provisions for regular bail under Section 497 of the CrPC for non-bailable offences.

- **Answer Details:** **Section 497** dictates that a person accused of a non-bailable offence may be released on bail, *except* if there appear reasonable grounds for believing that he has been guilty of an offence punishable with **death or imprisonment for life**.
- **Exceptions for Release:** The section contains an explicit proviso stating that the Court may direct that any person under the age of **sixteen years**, or any **woman**, or any **sick or infirm person** be released on bail even if the offence carries capital punishment.

Q82: What is the procedure for an "Inquest Report" under Section 174 of the CrPC?

- **Answer Details:** Under **Section 174**, an officer in charge of a police station or an authorized Magistrate, upon receiving information that a person has committed suicide, or has been killed by another, or by an animal, machinery, or accident, must immediately

proceed to the place where the body is and make an investigation into the apparent cause of death. They prepare an **Inquest Report** detailing wounds, fractures, and bruises, signed by the officer and local witnesses.

Section 7: The Evidence Act, 1872

Q83: When is an "Admission" relevant, and can it be used in favor of the person making it under Sections 17 and 21?

- **Answer Details: Section 17** defines an admission as a statement, oral or documentary, which suggests any inference as to any fact in issue or relevant fact.
- **Rule of Relevancy (Section 21):** Admissions are relevant and can generally be proved *against* the person who makes them or his representative in interest. They **cannot** be proved by or on behalf of the person who makes them, except under specific statutory exceptions (e.g., if it is of such a nature that, if the person making it were dead, it would be admissible as a dying declaration).

Q84: What is the difference between "Presumption of Fact" (*May Presume*) and "Presumption of Law" (*Shall Presume*) under Section 4?

- **Answer Details:**
 - **May Presume:** Whenever it is provided by the Act that the Court *may presume* a fact, it may either regard such fact as proved, unless and until it is disproved, or may call for proof of it (discretionary).
 - **Shall Presume:** Whenever it is directed by the Act that the Court *shall presume* a fact, it shall regard such fact as proved, unless and until it is disproved (mandatory; the court has no discretion to call for proof initially, but the opposing party can lead evidence to rebut it).

Section 8: The Bangladesh Labour Act, 2006

Q85: What are the statutory requirements for the termination of employment by a worker via resignation under Section 27?

- **Answer Details: Under Section 27**, a permanent worker may resign from employment by giving the employer notice in writing.
- **Notice Period:** The worker must give **60 days' notice** if they are a permanent monthly-rated worker, or **30 days' notice** if they are a piece-rated/hourly worker. If a worker resigns without notice, they must pay the employer wages in lieu of the notice period. Permanent workers with at least 5 years of service are entitled to compensation/gratuity upon resignation.

Section 9: The Limitation Act, 1908

Q86: What is the effect of "Fraud" or concealment on the calculation of a limitation period under Section 18?

- **Answer Details: Section 18** establishes that where a person having a right to institute a suit or make an application has been kept from the knowledge of such right or title by **fraud**, or where any document necessary to establish such right has been fraudulently concealed, the time for computing limitation **shall be reckoned from the time when the fraud first became known** to the affected party, or when they first had the means of producing the concealed document.

Section 10: The Negotiable Instruments Act, 1881 (NI Act)

Q87: Explain the concept of a "Holder in Due Course" under Section 9 of the NI Act.

- **Answer Details:** Section 9 defines a "Holder in Due Course" as any person who for consideration becomes the possessor of a promissory note, bill of exchange, or cheque, if payable to bearer, or the payee or indorsee thereof, **before the amount mentioned in it became payable**, and without having sufficient cause to believe that any defect existed in the title of the person from whom he derived his title.

Section 11: The Public Demands Recovery Act, 1913 (PDR Act)

Q88: What is the process of execution available to a Certificate-officer to realize public arrears under Section 22?

- **Answer Details:** Under Section 22, if a certificate is not satisfied after notice and the resolution of any objections, the Certificate-officer may execute it by:
 1. Attachment and sale, or sale without attachment, of any property belonging to the debtor.
 2. Attachment of any decree passed by a Civil Court in favor of the debtor.
 3. Arrest of the certificate-debtor and detention in civil prison.

Section 12: The Penal Code, 1860

Q89: What are the boundaries and limitations of the Right of Private Defence of the body under Sections 96 to 102?

- **Answer Details:** Section 96 states nothing is an offence which is done in the exercise of the right of private defence.
- **Limitations (Section 99):** There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done by a public servant acting in good faith. Crucially, the right **in no case extends to the inflicting of more harm than it is necessary to inflict** for the purpose of defence (proportionality principle).

Section 13: The Registration Act, 1908

Q90: What is the consequence of non-registration of documents required to be registered under Section 49?

- **Answer Details:** Under Section 49, any document required by Section 17 to be registered shall *not*:
 1. Affect any immovable property comprised therein.
 2. Confer any power to adopt.
 3. Be received as evidence of any transaction affecting such property or conferring such power.
- **Proviso Exception:** It can be received as evidence of part-performance of a contract in a suit for specific performance under the Specific Relief Act, or as evidence of collateral transactions.

Section 14: The Specific Relief Act, 1877

Q91: Under what conditions can a Court order the "Rectification of Instruments" under Section 31?

- **Answer Details:** Section 31 states that when, through **fraud or a mutual mistake** of the parties, a contract or other instrument in writing does not express their real intention,

either party or their representative in interest may institute a suit to have the instrument rectified. The Court must be satisfied that the instrument failed to show the true intent without overriding the rights acquired by third parties in good faith.

Section 15: The Suits Valuation Act, 1887

Q92: Power of the Government to make rules determining the value of land for jurisdictional purposes under Section 3.

- **Answer Details:** Under **Section 3**, the Government may make rules for determining the value of land for the purposes of jurisdiction in suits mentioned in the Court Fees Act, 1870, Section 7, paragraphs v and vi, and paragraph x, clause (d). This creates an objective state standard for valuation separate from fluctuating local market speculations.

Section 16: The Income Tax Act, 2023

Q93: What are the penal consequences for intentional non-filing of income tax returns under the current Income Tax Act?

- **Answer Details:** Under the current Income Tax Act, 2023 framework, an assessee who fails to file their income tax return within the statutory "Tax Day" deadline without a valid extension is subject to a mandatory financial penalty. Additionally, continuing defaults can result in the suspension of utility connections, commercial licenses, or the withholding of their Taxpayer's Identification Number (TIN) verifications for essential civic transactions.

Section 17: The Stamp Act, 1899

Q94: What is the procedure for the adjudication of proper stamp duty by a Collector under Section 31?

- **Answer Details:** Under **Section 31**, when an instrument, whether executed or not and whether sufficiently stamped or not, is brought to the Collector, and the person bringing it applies to have the proper duty determined, the Collector shall determine the duty based on the statutory rates and endorse the instrument accordingly upon payment of any deficiency.

Section 18: The Trademarks Act, 2009

Q95: What is the statutory penalty for falsifying or applying a false trademark under Section 73?

- **Answer Details:** Under **Section 73**, any person who falsifies any trademark or falsely applies to goods any trademark shall be punishable with imprisonment for a term which may extend to **2 years**, or with a fine, or with both. For a second or subsequent conviction, the penalty can extend to a term of 3 years.

Section 19: The Transfer of Property Act, 1882 (TPA)

Q96: Explain the doctrine of "Part Performance" under Section 53A of the TPA.

- **Answer Details:** **Section 53A** protects a transferee who has taken possession of an immovable property under an un-registered contract for transfer. If the transferee has performed or is willing to perform his part of the contract and has taken possession, the transferor is **barred from enforcing any right against the transferee** in respect of that property other than a right expressly provided by the contract terms.

Section 20: The Land Reforms Act, 2023

Q97: What is the legal status of "Benami" transactions of land under the Land Reforms Act, 2023?

- **Answer Details:** The Land Reforms Act, 2023, takes a strict stance on *Benami* land transfers (holding land in the name of another to mask true ownership). Any land held *Benami* is subject to direct statutory confiscation by the state without any compensation, and the real beneficial owner as well as the apparent titleholder face additional regulatory penalties and criminal prosecution under state asset tracking guidelines.

Section 21: The Non-Agricultural Tenancy Act, 1949 (NAT Act)

Q98: What are the components that must accompany a pre-emption application under Section 24?

- **Answer Details:** An application for pre-emption under **Section 24** must be filed before a competent Civil Court accompanied by:
 1. The full consideration money of the transferred land as stated in the registered deed.
 2. Statutory compensation calculated at **10%** of the consideration money.
 3. An annual interest payment if delayed within acceptable statutory notice boundaries.

Section 22: The Partition Act, 1893

Q99: What is the procedure for buying out a share of a party requesting a sale under Section 3?

- **Answer Details:** Under **Section 3**, if a party applies for a sale of property under Section 2, any other shareholder may apply to the court for leave to **buy at a valuation** the share of the party asking for the sale. The court will order a valuation of the share and offer it to the non-selling co-sharer, preventing a complete public auction if internal buyouts are viable.

Section 23: The State Acquisition and Tenancy Act, 1950 (SAT Act)

Q100: What is the limitation period and deposit rule for a pre-emption application under Section 96 of the SAT Act?

- **Answer Details:** Under **Section 96**, an application must be made within **4 months** of the date of service of notice of transfer, or within 4 months of the date of knowledge if no notice was served. The applicant must deposit the full purchase money into court alongside a mandatory **25% statutory compensation** fee to make the application legally maintainable.

Section 24: The Muslim Family Laws Ordinance, 1961

Q101: Explain the statutory composition and function of the "Arbitration Council" under this Ordinance.

- **Answer Details:** Under **Section 2**, the "Arbitration Council" consists of the Chairman of the local government body (e.g., Union Parishad) and **one representative nominated by each of the two contesting parties** (e.g., husband and wife). Its statutory function is to arbitrate matters of polygamy, divorce reconciliation, and the execution of maintenance claims.

Section 25: The Dissolution of Muslim Marriages Act, 1939

Q102: How does the ground of "Husband's Impotency" operate under Section 2(v) of the Act?

- **Answer Details:** Under **Section 2(v)**, a wife can sue for dissolution if the husband was impotent at the time of the marriage and continues to be so.

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Procedural Rule: Before passing a decree on this ground, the Court must, on application by the husband, make an order requiring the husband to **satisfy the Court within a period of 1 year** from the date of such order that he has ceased to be impotent. If he fails to do so, the decree is passed.

Section 26: The Hindu Law of Inheritance (Amendment) Act, 1929

Q103: Does this Act apply to a Hindu who dies leaving behind a Will (Testate Succession)?

- **Answer Details:** No. This Act specifically governs and amends the rules of **intestate succession** (where a person dies without leaving a valid Will). It does not affect or limit the right of a Hindu to dispose of their self-acquired property via a valid testamentary Will under general Hindu law frameworks.

Section 27: The Hindu Married Women's Right to Separate Residence and Maintenance Act, 1946

Q104: Can a court reduce or alter the maintenance amount once fixed under this Act?

- **Answer Details:** Yes. The right to maintenance is continuous but subject to economic fluctuations. A competent civil court retains the statutory discretion to modify, increase, or reduce the maintenance amount upon proof of a **material change in the financial circumstances** of either the husband or the separated wife.

Section 28: The Hindu Marriage Registration Act, 2012

Q105: What information must be contained in a Hindu Marriage Registration Form under the 2012 Rules?

- **Answer Details:** The official registration form must explicitly verify:
 1. The names, ages, and signatures/thumb impressions of the bride and groom.
 2. The formal addresses and parentage of both parties.
 3. The date and place where the religious marriage rites were performed.
 4. The names and signatures of at least two witnesses alongside the signature of the authorized Hindu Marriage Registrar.

Multi-Act Intersections & Practical Litigation Scenarios

Q106: Detail the procedural friction between Section 138 of the NI Act and the Limitation Act, 1908.

- **Answer Details:** Section 138 of the NI Act is a self-contained code containing **strict, non-extendable statutory limitation windows** for sending notices (30 days) and filing complaints (1 month from cause of action). The general provisions for condonation of delay under Section 5 of the Limitation Act, 1908, cannot be routinely applied to override a complete failure to meet the NI Act's internal timelines.

Q107: How does a plaintiff balance Section 9 of the Specific Relief Act with Section 11 of the CPC?

- **Answer Details:** A suit under Section 9 of the Specific Relief Act only decides immediate possession, not ultimate ownership title. Therefore, a decree under Section 9 does **not** operate as *Res Judicata* under Section 11 of the CPC against a subsequent, regular title-suit filed by either party to conclusively establish ownership and recover permanent possession.

Q108: What is the impact of an unstamped document (Stamp Act, Section 35) when establishing a contract under Section 10 of the Contract Act?

- **Answer Details:** An unstamped document does not invalidate the underlying contract's existence under Section 10 of the Contract Act, but **Section 35 of the Stamp Act** completely bars its admissibility as evidence in court. The contract remains valid but procedurally unenforceable until the document is "impounded" and the deficit stamp duty along with the statutory penalty is paid.

Q109: Explain the interaction between Section 54 of the TPA and Section 17 of the Registration Act in Bangladesh.

- **Answer Details:** They form an ironclad rule for land transactions. While Section 54 of the TPA sets the substantive requirement that sales must be executed via written, registered instruments, Section 17 of the Registration Act provides the formal procedural mandate making registration compulsory. Without their concurrent satisfaction, no real property title passes to a buyer.

Q110: How do Section 144 orders under the CrPC assist in maintaining status quo during pending civil land suits under the CPC?

- **Answer Details:** When a civil court takes time to process an injunction application under Order XXXIX of the CPC, local parties may attempt to forcefully alter the land's physical layout, risking a breach of peace. Litigants frequently use **Section 144 of the CrPC** as an emergency measure through law enforcement to halt all entry or work on the disputed land until the civil court issues its formal order.

Q111: Discuss how Section 34 of the Penal Code is proved using circumstantial evidence under the Evidence Act.

- **Answer Details:** "Common intention" under Section 34 of the Penal Code is a mental state and is rarely proven by direct documentation. Under the **Evidence Act, 1872**, it is established through conduct, surrounding circumstances, and subsequent actions of the co-accused (relevant under Sections 6 and 8), proving a prior meeting of minds or spontaneous alignment at the crime scene.

Q112: How do the pre-emption rights under Section 96 of the SAT Act and Section 24 of the NAT Act differ regarding agricultural vs. non-agricultural land?

- **Answer Details:** The fundamental difference lies in the subject matter and financial rules. **Section 96 of the SAT Act** applies strictly to agricultural land and requires a **25% statutory compensation** deposit. Conversely, **Section 24 of the NAT Act** applies to non-agricultural land situated in urban/suburban zones and requires a **10% compensation** deposit.

Q113: What happens if a worker files a claim under Section 27 of the Labour Act but the contract violates Section 10 of the Contract Act?

- **Answer Details:** If an employment contract is void ab initio under Section 10 of the Contract Act (e.g., signed by a minor or for an illegal object), the Labour Court will reject the claim. A worker must have a legally valid, lawful employment status under general contract principles to claim the statutory benefits or protections of the **Bangladesh Labour Act, 2006**.

Q114: Contrast the evidentiary value of a confession under Section 164 of the CrPC with an admission under Section 17 of the Evidence Act.

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Answer Details: A Section 164 confession is a formal statement of guilt made by an accused before a Magistrate under judicial warnings, carrying the highest weight and capable of forming the sole basis of conviction if voluntary. An admission under Section 17 of the Evidence Act is a broader civil or criminal statement regarding specific facts, which acts as an estoppel but is not conclusive proof by itself.

Q115: How does a Partition Suit under the Partition Act, 1893, interact with the Court Fees Act, 1870, for fixed vs. ad valorem fees?

- **Answer Details:** If the plaintiff is in joint physical possession of the family property and merely seeks a formal separation of shares, they pay a **fixed court fee** under Schedule II of the Court Fees Act. However, if they have been completely excluded or dispossessed from the property by other co-sharers, they must pay an **ad valorem court fee** based on the market value of their specific share to recover possession.

Section 1: The Civil Courts Act, 1887

Q116: What are the statutory limits regarding the alteration of local limits of jurisdiction under Section 13?

- **Answer Details:** Under **Section 13**, the Government may, by notification in the Official Gazette, fix and alter the local limits of the jurisdiction of any Civil Court. Where the local limits of a court's jurisdiction are altered, any pending suit or proceeding which would have been triable in that court remains unaffected unless the notification or a specific directive from the High Court Division expressly transfers those active cases to another court.

Q117: What is the provision for the investment of a District or Joint District Judge with special powers under Section 24?

- **Answer Details:** **Section 24** allows the Government, upon the recommendation of the High Court Division, to invest any District Judge or Joint District Judge with the power to hear appeals from decrees or orders of Senior Assistant Judges or Assistant Judges. This is an administrative mechanism designed to alleviate case backlogs by distributing appellate workloads.

Section 2: The Code of Civil Procedure, 1908 (CPC)

Q118: Explain the statutory principle of "Inherent Powers of the Court" under Section 151 of the CPC.

- **Answer Details:** **Section 151** explicitly preserves the inherent powers of a Civil Court. It states that nothing in the CPC shall be deemed to limit or otherwise affect the inherent power of the court to make such orders as may be necessary **for the ends of justice or to prevent abuse of the process of the court**. It is an extraordinary residual power used only when no specific, explicit provision exists in the Code to address a particular procedural anomaly.

Q119: What are the mandatory rules for serving a summons on a corporate entity under Order XXIX, Rule 2?

- **Answer Details:** Under **Order XXIX, Rule 2**, where the suit is against a corporation, the summons may be served:

1. On the secretary, or on any director, or other principal officer of the corporation; or
2. By leaving it or sending it by post addressed to the corporation at its registered office, or if there is no registered office, at the place where the corporation carries on business.

Q120: Under what circumstances can an appellate court accept "Additional Evidence" under Order XLI, Rule 27?

- **Answer Details: Order XLI, Rule 27** restricts the production of additional evidence in an appellate court. It is permissible *only* if:
 1. The court from whose decree the appeal is preferred refused to admit evidence which ought to have been admitted; or
 2. The appellate court requires any document to be produced or any witness to be examined to enable it to pronounce judgment; or
 3. For any other substantial cause.

Section 3: The Contract Act, 1872

Q121: What is the status of an agreement in restraint of trade under Section 27, and what is its sole exception?

- **Answer Details: Section 27** states that every agreement by which any person is restrained from exercising a lawful profession, trade, or business of any kind is to that extent **void**.
- **Statutory Exception:** The only exception is the **sale of the goodwill of a business**, where a buyer may agree with the seller to refrain from carrying on a similar business within specified local limits, provided such limits appear reasonable to the Court. **Q122: Explain the principle of "Agency by Ratification" and its limits under Sections 196 and 197.**
- **Answer Details:** Under **Section 196**, where acts are done by one person on behalf of another but without his knowledge or authority, the person may elect to **ratify or to disown such acts**. If he ratifies them, the same effects will follow as if they had been performed by his prior authority. Under **Section 197**, ratification may be expressed or implied by conduct, but it cannot validly validate an act that would injure a third party or violate public policy.

Section 4: The Copyright Act, 2023

Q123: What constitutes the statutory definition of "Fair Dealing" under the Copyright Act, 2023?

- **Answer Details:** The Act provides that certain acts do not constitute an infringement of copyright. "Fair Dealing" includes the reproduction or adaptation of a work strictly for:
 1. Private or personal use, including research or educational study.
 2. Criticism, review, or news reporting in newspapers, magazines, or broadcasting media, provided a proper citation or acknowledgment of the original author is explicitly made.

Section 5: The Court Fees Act, 1870

Q124: How are court fees determined for a suit seeking a declaratory decree with consequential relief under Section 7(iv)(c)?

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Answer Details: Under **Section 7(iv)(c)**, in suits to obtain a declaratory decree or order where consequential relief is prayed, the plaintiff must state the amount at which he values the relief sought. The court fee is calculated **ad valorem** based on this stated valuation. However, under the Suits Valuation Act, this valuation must align with the actual economic or market value of the subject matter to prevent arbitrary undervaluation.

Section 6: The Code of Criminal Procedure, 1898 (CrPC)

Q125: What is the procedure for a Magistrate to take "Cognizance of an Offence" under Section 190 of the CrPC?

- **Answer Details:** Under **Section 190**, any Metropolitan Magistrate, District Magistrate, or Magistrate of the first class may take cognizance of any offence:
 1. Upon receiving a **complaint of facts** which constitute such offence (C.R. Case).
 2. Upon a **police report** of such facts (G.R. Case).
 3. Upon information received from any person other than a police officer, or upon his own knowledge or suspicion that such offence has been committed. **Q126: Explain the structure and execution of a "Summary Trial" under Sections 260 to 265 of the CrPC.**
- **Answer Details:** Under **Section 260**, specified Magistrates are empowered to try certain offenses in a summary manner (e.g., offenses not punishable with death, transportation, or imprisonment exceeding 2 years, theft under low values). Under **Section 262**, the maximum term of imprisonment that can be passed in a summary trial is restricted to **2 months**. The record is brief, consisting of a statutory form and a short judgment. **Q127: What is the statutory difference between a "Reference" (Section 432) and an "Appeal" under the CrPC?**
- **Answer Details:**
 - **Reference (Section 432):** A lower court submits a question of law or the validity of an Act/Ordinance to the High Court Division for its authoritative opinion, before finalizing its own judgment.
 - **Appeal:** A statutory right exercised by an aggrieved party (the accused or the state) *after* a final judgment or order has been delivered, seeking a superior court's total reversal or modification of the conviction/sentence.

Section 7: The Evidence Act, 1872

Q128: What is the standard for admitting "Expert Opinion" evidence under Section 45?

- **Answer Details:** **Section 45** provides that when the Court has to form an opinion upon a point of **foreign law, science, art, or as to identity of handwriting or finger impressions**, the opinions upon that point of persons specially skilled in such areas (experts) are relevant facts. Such evidence is advisory in nature and must be corroborated; the court is not bound blindly to follow it.

Q129: Explain the rule of "Hostile Witness" under Section 154 of the Evidence Act.

- **Answer Details:** **Section 154** allows the court, in its discretion, to permit the person who calls a witness to put any questions to him which might be put in **cross-examination by the adverse party**. This occurs when a witness exhibits a distinct animus against the

party who called them or completely recants their prior statement, allowing the calling party to impeach their credibility.

Section 8: The Bangladesh Labour Act, 2006

Q130: What is the statutory procedure for a worker to file a grievance under Section 33?

- **Answer Details:** Under **Section 33**, any worker who has a grievance against an employer regarding a lay-off, retrenchment, discharge, dismissal, or termination must bring his grievance to the notice of the employer **in writing within 30 days** of the cause of action. The employer must communicate his decision within 15 days. If the employer fails or if the worker is dissatisfied, the worker may file a formal complaint directly to the **Labour Court within the next 30 days**.

Section 9: The Limitation Act, 1908

Q131: How does an "Acknowledgement in Writing" affect the calculation of limitation under Section 19?

- **Answer Details:** Under **Section 19**, if, before the expiration of the period prescribed for a suit or application in respect of any property or right, an acknowledgment of liability has been made **in writing and signed by the party** against whom the right is claimed, a **fresh period of limitation shall be computed** from the time when the acknowledgment was so signed.

Section 10: The Negotiable Instruments Act, 1881 (NI Act)

Q132: What constitutes a valid "Notice of Dishonour" under Section 138, and what is its mandatory delivery window?

- **Answer Details:** For a cheque dishonour to mature into a criminal offense under **Section 138**, the payee must give a notice in writing to the drawer demanding payment of the money. This notice must be given **within 30 days** of the receipt of information from the bank regarding the return of the cheque as unpaid. The drawer is then given 30 days from the receipt of the notice to make the payment before a criminal complaint can be filed.

Section 11: The Public Demands Recovery Act, 1913 (PDR Act)

Q133: Under what grounds can a certificate sale be set aside under Section 35?

- **Answer Details:** Under **Section 35**, a certificate sale of immovable property may be set aside by the Certificate-officer upon an application made within **30 days** from the date of sale, on the ground of a **material irregularity or fraud** in publishing or conducting the sale. The applicant must prove that they sustained substantial injury by reason of such irregularity or fraud.

Section 12: The Penal Code, 1860

Q134: What constitutes the offense of "Cheating" under Section 415, and how is it punished under Section 420?

- **Answer Details:**
 - **Section 415 (Cheating):** Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property.
 - **Section 420 (Punishment):** Covers cheating and dishonestly inducing delivery of property. It carries a maximum punishment of **7 years of imprisonment** along

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with a mandatory financial fine, distinguishing itself from simple cheating by the physical delivery or destruction of valuable securities.

Section 13: The Registration Act, 1908

Q135: What is the procedure for registering a document when the executing party refuses to appear under Section 36?

- **Answer Details:** Under **Section 36**, if any person executing a document refuses to appear before the registering officer, the registering officer may, upon the application of the presenter, issue a **summons** requiring such person to appear at the registration office. If they fail to appear or deny execution, the officer will refuse registration, triggering the appellate remedy of a suit under **Section 77**. **Section 14: The Specific Relief Act, 1877**

Q136: Under what criteria will a Court grant a "Mandatory Injunction" under Section 55?

- **Answer Details:** Under **Section 55**, when, to prevent the breach of an obligation, it is necessary to compel the performance of certain acts which the Court is capable of enforcing, the Court may in its discretion grant an injunction to **prevent the breach complained of, and also to compel performance of the requisite acts**. It requires the active removal of an illegal structural status quo.

Section 15: The Suits Valuation Act, 1887

Q137: What is the statutory layout of Section 8 regarding the valuation of suits for court fees and jurisdiction?

- **Answer Details:** **Section 8** establishes that where in suits other than those referred to in the Court Fees Act, 1870, Section 7, paragraphs v, vi, vii, and x, clause (d), court fees are payable ad valorem under the Court Fees Act, 1870, the value as determinable for the computation of court fees and the value for purposes of jurisdiction **shall be the same**. It explicitly ties jurisdictional competency to the fiscal evaluation of the suit.

Section 16: The Income Tax Act, 2023

Q138: What is the mandate for "Tax Deducted at Source" (TDS) on commercial real estate transactions under the current Act?

- **Answer Details:** Under the contemporary Income Tax Act, 2023 framework, any corporate or structured entity executing a commercial real estate lease or purchase agreement must deduct tax at source (TDS) at specified statutory percentages before transferring payments to the lessor or vendor. Failure to comply bars the transaction from being recognized as a deductible business expense during corporate annual audits.

Section 17: The Stamp Act, 1899

Q139: What is the legal effect of executing an instrument on material not properly stamped under Section 17?

- **Answer Details:** **Section 17** requires that all instruments chargeable with duty and executed by any person in Bangladesh **shall be stamped before or at the time of execution**. If executed unstamped, it immediately triggers the evidentiary absolute bar under Section 35, rendering it legally paralyzed until corrected through fiscal impounding.

Section 18: The Trademarks Act, 2009

Q134: Explain the statutory concept of an "Associated Trademark" under Section 13.

- **Answer Details:** Under **Section 13**, where a trademark that is registered, or is the subject of an application for registration, in respect of any goods or services is identical with another trademark or so nearly resembles it as to be likely to deceive if used by a person other than the proprietor, the Registrar may require that the trademarks shall be entered on the register as **associated trademarks**. They cannot be assigned or transferred separately.

Section 19: The Transfer of Property Act, 1882 (TPA)

Q141: What are the primary rights and liabilities of a Mortgagor regarding the "Right to Redemption" under Section 60?

- **Answer Details:** **Section 60** details the Mortgagor's fundamental Right to Redemption. At any time after the principal money has become due, the mortgagor has a right, on payment or tender of the mortgage money, to require the mortgagee to deliver the mortgage deed and all documents to him, and to re-transfer the property. This right **cannot be clogged** or extinguished by any private contractual stipulation.

Section 20: The Land Reforms Act, 2023

Q142: What are the restrictions placed on the conversion of agricultural land under the Land Reforms Act, 2023?

- **Answer Details:** The Land Reforms Act, 2023, strictly restricts the conversion of fertile agricultural land into non-agricultural use (such as housing or commercial factories) without explicit, written prior permission from the authorized state land body. Unauthorized conversions are completely void, render the land liable to forfeiture, and subject the violator to statutory financial penalties.

Section 21: The Non-Agricultural Tenancy Act, 1949 (NAT Act)

Q143: Explain the landlord's right to enhance rent under Section 13 of the NAT Act.

- **Answer Details:** Under **Section 13**, a landlord may apply to a competent court to enhance the rent of a non-agricultural tenant on specific grounds, including a substantial increase in the local value of the land or improvements made to the property at the landlord's expense. However, such enhancement cannot be arbitrary and is structurally restricted to fixed percentages over specified multi-year intervals. **Section 22: The Partition Act, 1893**

Q144: Can a Court order a partial sale and partial partition of a property under this Act?

- **Answer Details:** Yes. If a family estate contains multiple parcels of land or a complex multi-story building where some parts are easily divisible among co-sharers but other parts (like an internal core structure or a main entry gate) cannot be severed without destroying the property's utility, the Court has the judicial discretion to partition the divisible portions and order a sale of the indivisible sections under **Sections 2 and 3**.

Section 23: The State Acquisition and Tenancy Act, 1950 (SAT Act)

Q145: What constitutes the statutory grounds for the preparation of a "Record-of-Rights" (Khatian) under Section 144 of the SAT Act?

- **Answer Details:** Under **Section 144**, the Government may direct that a Record-of-Rights be prepared or revised by a revenue officer for a local area. The grounds include updating mutations, correcting historical mapping errors, recording

structural changes due to river avulsion/alluvion, and establishing absolute state clarity regarding who holds active tenant (*Raiyat*) liabilities.

Section 24: The Muslim Family Laws Ordinance, 1961

Q146: What is the statutory penalty for contracting a polygamous marriage in violation of Section 6?

- **Answer Details:** Under **Section 6**, any man who contracts another marriage without the prior written permission of the Arbitration Council shall:
 1. Be liable to pay immediately the **entire amount of the dower** (*Mahr*), whether prompt or deferred, due to the existing wife or wives.
 2. Upon conviction following a formal complaint, be punishable with simple imprisonment which may extend to **1 year**, or with a fine, or with both.

Section 25: The Dissolution of Muslim Marriages Act, 1939

Q147: How does the ground of "Failure to Provide Maintenance" operate under Section 2(ii) of the Act?

- **Answer Details:** Under **Section 2(ii)**, a Muslim woman can seek a divorce decree if the husband has **failed to provide for her maintenance for a continuous period of 2 years**. This right remains absolute even if the husband's failure is due to poverty, ill-health, incarceration, or simple unemployment, provided the wife has not un-lawfully refused to live with him without a valid legal cause.

Section 26: The Hindu Law of Inheritance (Amendment) Act, 1929

Q148: What is the exact statutory ranking given to a sister under this Act?

- **Answer Details:** The Act explicitly elevates a **sister** in the order of succession under the Mitakshara school, placing her immediately after the father's father and before the father's brother (paternal uncle). This disrupted the absolute priority of distant male agnates in favor of close female cognates.

Section 27: The Hindu Married Women's Right to Separate Residence and Maintenance Act, 1946

Q149: What constitutes "Justifiable Cause" for separate residence under Section 2 of the Act?

- **Answer Details:** Under **Section 2**, a Hindu married woman is entitled to separate residence and maintenance if the husband:
 1. Is suffering from a loathsome disease not contracted from her.
 2. Is guilty of such cruelty as renders it unsafe or undesirable to live with him.
 3. Keeps a concubine in the house or habitually resides with one.
 4. Marries again.

Section 28: The Hindu Marriage Registration Act, 2012

Q150: Does the failure to register a Hindu marriage under the 2012 Act invalidate the religious union?

- **Answer Details:** No. **Section 3** of the Hindu Marriage Registration Act, 2012, explicitly clarifies that the registration of a Hindu marriage is optional and procedural. A failure to register the marriage **does not** affect the legal validity or sanctity of a marriage solemnized under traditional Hindu religious rites, customs, and ceremonies.

